

# Certification

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## Application and Definitions

1.1

Unless otherwise stated, this Part applies to every *firm* that is:

1. (1) a *CRR firm*; or
  2. (2) a *credit union*; or
  3. (3) a *third country CRR firm* in relation to:
    1. (a) the activities of its establishment in the *UK*; or
    2. (b) if it does not have an establishment in the *UK*, its activities in the *UK*.
- 31/12/2020
  - [Past version of 1.1 before 31/12/2020](#)

1.1A

This Part does not apply to a *SRO firm*.

- 31/12/2020

1.2

In this Part, the following definitions shall apply:

*employee*

in relation to a [firm](#), includes any [person](#) within the description set out in section 63E(9) of [FSMA](#).

### [significant risk taker](#)

means

1. (1) an [employee](#) of a [CRR firm](#) whose professional activities have a material impact on the [firm's](#) risk profile, including any [employee](#) who falls within [Remuneration 3.1](#)(1);
  2. (2) any [employee](#) of a [credit union](#) who:
    1. (a) is a member of the [governing body](#);
    2. (b) is a member of the [senior management](#);
    3. (c) is responsible and accountable to the [management body](#) for the activities of the independent risk management function, compliance function or internal audit function;
    4. (d) heads a function responsible for legal affairs, finance including taxation and budgeting, human resources, remuneration policy, information technology or economic analysis; or
  5. (3) any [employee](#) of a [third country CRR firm](#) who would fall within (1) if it had applied in relation to him or her.
- 01/03/2022
  - [Past version of 1.2 before 01/03/2022](#)

### 1.3

This Part does not apply to a function performed by:

1. (1) a [person](#) acting as an insolvency practitioner within the meaning of section 388 of the Insolvency Act 1986;
2. (2) a [person](#) acting as a nominee in relation to a voluntary arrangement under Part I (Company Voluntary Arrangements) of the Insolvency Act 1986;
3. (3) a [person](#) acting as an insolvency practitioner within the meaning of Article 3 of the Insolvency (Northern Ireland) Order 1989;
4. (4) a [person](#) acting as a nominee in relation to a voluntary arrangement under Part II (Company Voluntary Arrangements) of the Insolvency (Northern Ireland) Order 1989;

5. (5) a [PRA approved person](#);
  6. (5A) a [person](#) in relation to whom a notice under [section 59ZZA](#) has been given to an [authorised person](#);
  7. (6) a [person](#) who performs an [FCA controlled function](#); or
  8. (7) a [non-executive director](#) in relation to their [non-executive director](#) function.
- 31/12/2020
  - [Past version of 1.3 before 31/12/2020](#)

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## Performance of Certification Functions

2.1

A [firm](#) must take reasonable care to ensure that none of its [employees](#) performs a [certification function](#) under an arrangement entered into by the [firm](#) in relation to the carrying on by the [firm](#) of a [regulated activity](#), unless the [employee](#) has a valid [certificate](#) issued by the [firm](#).

- 07/03/2017
- [Past version of 2.1 before 07/03/2017](#)

2.2

For the purposes of this Part, any function that is performed by a [significant risk taker](#) for a [firm](#) is a [certification function](#) to the extent that the function requires the [significant risk taker](#) to be involved in one or more aspects of the [firm's](#) affairs, so far as relating to a [regulated activity](#) carried on by the [firm](#).

- 07/03/2016

2.3

However, a [significant risk taker](#) does not perform a [certification function](#) for a [firm](#) under [2.2](#) if the [significant risk taker](#) is performing any [controlled function](#) for that [firm](#).

- 07/03/2016

## 2.4

To the extent that:

1. (1) a [firm](#) appoints a [person](#) to perform a function which, but for this rule, would be a [certification function](#);
2. (2) the appointment solely is to provide cover for a [certification employee](#) whose absence is reasonably unforeseen; and
3. (3) the appointment is for less than four weeks;

such a [person](#) does not perform a [certification function](#).

- 07/03/2016